Learning Disabilities	Number	Page
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Revision Date:
July 1, 2026

Background:
Learning Disabilities (LD) may interfere with an Employment Services (ES) participant's ability to obtain or retain employment or participate in certain ES activities. In accordance with state policy, the ES program offers screening and evaluation for LD to participants in order to identify potential learning needs that may impact their learning skills, such as reading, writing, or math that can, in turn, interfere with other life skills such as organization, time planning, abstract reasoning, long- or short -term memory and attention. The ES program can provide reasonable accommodations needed to help the participant be successful in completing their ES activities.

Purpose:
The purpose of this revision is to provide staff clarification regarding LD services. In addition, this section has been rereviewed for sunset review.

Policy:
Information and Screening Requirements
Information about the screening process for LD and an offer for a screening must be provided to all participants both, verbally and in writing, at the first ES contact (such as orientation or appraisal). The LD information must include a description of the purpose and benefits of having a screening and evaluation. The LD screening must be provided in the participant's primary language if there is a validated screening tool available in that language. If no validated screening tool exists in the participant's primary language, the participant may request a direct referral for a LD evaluation.

Participants have the right to decline a LD screening and evaluation. They cannot be sanctioned for refusing to be screened or evaluated.

If a participant initially waives the screening and later request it, the screening must be performed as soon as possible prior to the participant being assigned to another ES activity. The participant will be granted good cause for not participating in their assigned activity when their screening appointment conflicts with their activity schedule.

LD Evaluation
A referral for a LD evaluation will be completed if an ES participant is suspected of having a learning disability and agrees to an evaluation. This includes individuals who meet at least one of the following criteria:

- Have been identified as having a potential LD based on the LD screening score.
- Are suspected of having a LD even if the screening did not indicate a potential LD.
- Were previously identified as having a LD (such as attending special education classes).
- Have requested a referral to a LD evaluation because no validated screening tool exists in their primary language.

Only trained professionals who use recognized and validated assessment tools are authorized

to conduct LD evaluations. If a participant declines to participate in an LD evaluation, their ES activities will not include any accommodations for LD.

LD evaluations include:

- Discussion about learning/education experiences.
- Observations of work habits and classroom ability.
- Testing for learning aptitudes and vocational interests.
- Evaluation for other impairments to participate in ES activities.

LD Evaluation Report

The ES participant will receive a copy of the LD Evaluation Report and an explanation of the evaluation results from the LD Specialist during an exit interview or from their Employment Case Manager (ECM).

The LD evaluation report must include, at a minimum, the following core information:

- Relevant vocational/educational background and interests.
- General aptitude/cognitive level.
- Areas of strength and areas of deficiency.
- Summary of the participants' conditions and services needed.

The LD evaluation report may also include:

- Local resources to assist participants.
- Documentation of recommended accommodation and/or assistive technology needs.
- Discussion of the participant's short/long-term employment goals and general/specific vocational recommendations.

If a participant provides previous LD evaluation results that were conducted outside of the ES program and the evaluation does not contain information to determine the participant's current ability to become employable, an evaluation will be done by ES to determine whether to accept the results or to obtain a second opinion by referring the participant for another evaluation.

Response to the Evaluation Report

If it is determined that the participant did not have a LD, the participant must begin or resume their ES assignment without special accommodation.

If it is determined that the participant does have a LD that interferes with obtaining or retaining employment or participating in an ES activity, the ECM will develop or modify with the participant form WTW 2, *Welfare to Work (WTW) Plan Activity Assignment,* to reflect the appropriate activities and accommodations based on the results of the LD evaluation. The participant has the right to file for a state hearing if they disagree with the county's actions based on the evaluation.

Confidentiality

The participant's medical records and written LD evaluations are confidential documents and are

only to be shared with other counties, other LD evaluators, and ES partner agencies, on a "need-to-know" basis. The participant's written consent, on form WTW 20 - *Permission to Release Learning Disabilities Information,* must be obtained for this information to be shared with individuals or organizations outside of ES.

LD Participation Requirements

Unless exempt from participation, an individual with a LD generally must participate for the required number of hours. If the LD Evaluation Report recommends fewer hours of participation, the ECM may modify the WTW 2 form as necessary to reflect a reasonable accommodation to help the participant be successful in completing their ES activities.

For participants with a LD, the required hours of participation may include supplemental activities that support the participant's employment goals and are consistent with the recommendations of the LD Evaluation Report and WTW 2, such as, but not limited to:

- Adult Basic Education.
- Literacy tutoring.
- Additional study time.

Good Cause, Compliance, and Sanctions

If a LD is confirmed through an evaluation during a participant's good cause determination or compliance process, the ECM must determine if the disability contributed to the participant's failure to comply. If it is determined that the LD impacts the participant's ability to participate:

- The participant will be considered to have good cause for their failure to participate in the required hours, or if appropriate, to be exempt from ES activities.
- The participant will not be considered to have an instance of noncompliance.
- The ECM must also review the ES activity and/or WTW 2 and modify it as needed to accommodate the participant's disability.

If a LD is confirmed through an evaluation for a participant who is attempting to stop an ES sanction, the ECM must determine if the disability contributed to the participant's noncompliance. If it is determined that the LD was a contributing factor to becoming non-compliant, the ECM will:

- Rescind the sanction, and the participant will not be considered to have an instance of noncompliance.
- Review the ES activity, and ES plan and modify it appropriately for the participant's disability.

If the LD was not a contributing factor to noncompliance, the noncompliance process will continue as required.

Inter-County Transfers of Individuals with LD

When a CalWORKs recipient with a verified LD moves from one county to another, the sending county must, with the participant's written permission, forward a copy of the written LD evaluation to the receiving county. The receiving county must develop a new, or modify the existing, WTW2

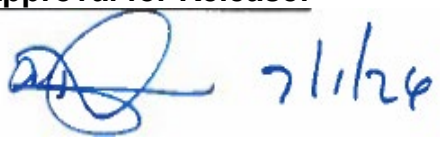
as necessary, to reflect appropriate activities and necessary reasonable accommodations. When the participant refuses to give permission for the sending county to forward the LD evaluation to the receiving county, the participant will not have good cause for failure to participate in the receiving county if the receiving county fails to provide services and accommodation based on the LD.

Procedures:
CalWORKs Processing Guide10-006.A1
How To 1009 – Entering Learning Disability Assessment Results

References:
Manual of Policies and Procedures (MPP) 42-722
All County Letter (ACL) No. 15-101, 16-93

Sunset Date:
This policy will be reviewed for continuance by July 31, 2029.

Approval for Release:



Alberto Banuelos PH.D., Interim Director
Self-Sufficiency Services